

permit Defendant to move back into the home.

Plaintiff also requests attorney's fees and costs in the amount of \$2,460.00 for bringing the motion. Section 16 of the written settlement agreement provides that "if litigation is initiated based on a claim that there has been a breach of this Agreement, or enforcement of this Agreement is required pursuant to Section 23 of this Agreement, the prevailing party in any such lawsuit shall be entitled to an award of reasonable attorney's fees and costs."

Considering the alleged breach of the agreement by both parties, the Court does not intend to grant the motion for enforcement of the agreement or attorney's fees and costs and defers ruling on the motion at this time. The Court notes a settlement conference is currently set for November 30, 2026. The Court believes that a resolution may be reached and advances the settlement conference to **Monday, August 3, 2026, at 1:30 p.m. in Department 64**. The clerk is directed to vacate the November 30, 2026, settlement conference.

IN RE: SULLIVAN

CASE NUMBER: 26CV-0210344

Tentative Ruling on Petition for Change of Name: Petitioner Brandon Charles Sullivan seeks to change his name to Brandon Charles Mitchell. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.

TRILLO, ET AL. VS. HINESLEY, ET AL.

CASE NUMBER: 25CV-0209540

Tentative Ruling on Demurrer: Defendant Novo Nordisk Inc. demurs to the First Cause of Action for Wrongful Death, the Fifth Cause of Action for Products Liability-Failure to Warn, and the Seventh Survival Cause of Action of the First Amended Complaint filed by Plaintiffs, George Ruduan Hage III and Victor Trillo. Plaintiffs oppose the demurrer.

Meet and Confer. CCP § 430.41 requires the demurring party to "meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." The Declaration of Demurring or Moving Party Regarding Meet and Confer filed on June 5, 2026, indicates the parties met and conferred by telephone and did not reach an agreement.

Request for Judicial Notice. Defendant has requested the Court take judicial notice of: (1) the FDA-approved prescribing information and medication guide for Wegovy as it existed in July of 2025; (2) the FDA-approved prescribing information and medication guide current as of the date of filing; (3) the USDA website, demonstrating products, approval dates and history, letters, labels and reviews for Wegovy current as of the date of filing; (4) the FDA-approved prescribing information and medication guide for Wegovy, as it existed at the time of original approval on June 4, 2021; (5) the *Hage* Complaint (210078); and (6) a copy of the original *Trillo* Complaint (209540). The request is granted pursuant to Evid. Code §§ 452 and 453.

Merits. A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. A

demurrer should be sustained if the complaint fails to “state facts sufficient to constitute a valid cause of action” or if the complaint is uncertain. CCP § 430.10(e)-(f). The Court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff’s allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff’s causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

Duplicative filings. Novo Nordisk, Inc. demurrers to the First, Fifth, and Seventh Causes of Action on the grounds that there is a similar action pending under CCP § 430.10(c). CCP § 430.10(c) provides that a party may demurrer on the grounds that “[t]here is another action pending between the same parties on the same cause of action.” Defendant identifies Shasta County case 209540 as a subsequent case filed which is identical to the First Amended Complaint in the present matter. The Court notes the complaint in case 210078 was dismissed without prejudice on June 30, 2026. Considering the dismissal, the demurer is **OVERRULED** on the grounds of a duplicative filing.

First Cause of Action. The First Cause of Action for Wrongful Death alleges that Novo Nordisk Inc. breached their duty of care to the decedent by failing to “provide adequate warnings regarding restart protocols and cardiovascular risks” regarding the subject product. Defendant argues that the claim is barred by the learned intermediary doctrine. The learned intermediary doctrine provides that “...in the case of prescription drugs, the duty to warn runs to the physician, not to the patient.” *Carlin v. Superior Court* (1996) 13 Cal.4th 1104.

In opposition, Plaintiffs argue that the learned intermediary doctrine does not shield a manufacturer from liability when warnings to a physician are inadequate. Plaintiffs cite *Himes v. Somatics, LLC* (2024) 16 Cal.5th 209, 222, which states that “the manufacturer fulfills its general duty of care owed to the patient by providing an adequate warning to the patient’s physician. If the manufacturer fails to provide an adequate warning to the patient’s physician, then the patient may sue asserting negligence for breach of its general duty of care or asserting strict liability for marketing a product that has been rendered defective due to the inadequate warning.”

Here, the First Amended Complaint alleges that Novo Nordisk, Inc. breached its duty of care owed to the *decedent* by failing to provide adequate warnings regarding restart protocols and cardiovascular risks. The First Amended Complaint does not allege that Novo Nordisk, Inc. failed to provide adequate warnings to the decedent’s physician. The Demurrer is **SUSTAINED** with leave to amend as to Defendant Novo Nordisk, Inc. in the First Cause of Action regarding the issue of duty.

Fifth Cause of Action. The Fifth Cause of Action of the Complaint for Products Liability- Failure against Novo Nordisk, Inc. alleges that Defendant failed to provide adequate warnings to healthcare providers and patients of specified risks associated with the subject product. “The rules of strict liability require a plaintiff to prove only that the defendant did not adequately warn of a particular risk that was known or knowable in light of the generally recognized and prevailing best scientific and medical knowledge available at the time of manufacture and distribution.” *Anderson v. Owens-Corning Fiberglas Corp.*, supra, 53 Cal.3d 987. “Drug manufacturers need only warn of risks that are actually known or reasonably scientifically knowable.” *Carlin v. Superior Court*,

supra, 13 Cal.4th 1104. The First Amended Complaint fails to allege that the specified risks were actually known or reasonably scientifically knowable at the time of manufacture and distribution, thus giving rise to a failure to warn.

Additionally, as stated above the duty to warn runs to the physician, not the patient. *Carlin v. Superior Court*, supra, 13 Cal.4th 1104. The Fifth Cause of Action alleges that defendant failed to warn both healthcare providers and patients. The Demurrer as to the Fifth Cause of Action is **SUSTAINED** with leave to amend regarding Defendant's duty to warn patients and whether the risks were actually known or reasonably knowable to Novo Nordisk, Inc. at the time of manufacture and distribution.

Causation. Novo Nordisk, Inc. also demurrers to the First Amended Complaint on the grounds that Plaintiffs fail to establish medical causation. "A plaintiff asserting causes of action based on a failure to warn must prove not only that no warning was provided or the warning was inadequate, but also that the inadequacy or absence of the warning caused the plaintiff's injury." *Motus v. Pfizer, Inc.* (2001) 196 F.Supp.2d 984, 991. If a drug manufacturer breached its duty to adequately warn physicians, "a plaintiff may establish causation by showing that the physician would have communicated the stronger warning to the patient and an objectively prudent person in the patient's position would have thereafter declined the treatment." *Himes v. Somatics, LLC*, supra, 16 Cal.5th 209.

Here, the Complaint alleges that the failure to warn of the above risks was a substantial factor in causing Defendant Hinesley to prescribe and Defendant Stafford to dispense the dosage that allegedly caused the toxic reaction that led to the decedent's death. Plaintiffs do not allege that the physicians would have communicated the stronger warning and that a prudent person in the decedent's position would have declined treatment.

The Demurrer as to the First and Fifth Causes of Action is **SUSTAINED** with leave to amend regarding causation.

Seventh Cause of Action. The Seventh Cause of Action of the Complaint is a Survival Action. CCP § 377.30 provides that "[a] cause of action that survives the death of the person entitled to commence an action or proceeding passes to the decedent's successor in interest...and an action may be commenced by the decedent's personal representative or, if none, by the decedent's successor in interest." Here, the First and Fifth Causes of Action are the only other causes of action against Novo Nordisk Inc. As stated above, the Demurrer is sustained as to the First and Fifth Causes of Action, therefore the Survival Action cannot endure. The Demurrer is **SUSTAINED** with leave to amend as to Defendant Novo Nordisk Inc., in the Seventh Cause of Action.

In summary, the Demurrer is **SUSTAINED** with leave to amend as to the First, Fifth, and Seventh Causes of Action regarding duty to warn physicians/patients and whether the alleged risks were actually or reasonably known to Novo Nordisk Inc. at the time of manufacture and distribution. Defendant shall prepare the order. Plaintiff shall file a Second Amended Complaint within 15 days of service of notice of entry of order.

9:00 a.m. Review Hearings

BARTLETT, ET AL. VS. GENERAL MOTORS LLC

CASE NUMBER: 25CV-0207553

This matter is on calendar for review regarding status of judgment/dismissal. A Conditional Notice of Settlement was filed on January 9, 2026 which indicates this matter would be dismissed no later than May 11, 2026. No dismissal is on file. The Court intends on dismissing this case pursuant to California Rule of Court 3.1385(c)(2) unless the parties appear at today's hearing and show good cause why the case should not be dismissed.

BOWERS, ET AL. VS. RIDGELINE BUILDERS GROUP, INC., ET AL.

CASE NUMBER: 25CV-0208325

This matter is on calendar for review regarding status of the stay. On February 2, 2026, the Court issued an order staying this matter while the parties complied with the Right to Repair Act's prelitigation procedures. The parties have submitted a joint case management statement which requests additional time to review expert reports and proposed repairs. This matter is continued to **Monday, October 19, 2026, at 9:00 a.m. in Department 64.** The parties are ordered to submit a joint status statement at least five days prior to the review hearing. **No appearance is necessary on today's calendar.**

CAICEDO VS. SUNBABE, LTD

CASE NUMBER: 25CV-0208229

This matter is on calendar for review regarding status of responsive pleadings. This action was filed on July 18, 2025. A proof of service was filed on April 21, 2026 which reflects service on the Defendant on April 6, 2026. No responsive pleading has been filed. No request for default has been filed. **An appearance is necessary on today's calendar to provide the Court with a status of the responsive pleadings and/or request for default.**

IN RE: CHRISTIAN

CASE NUMBER: 26PB-0033218

This matter is on calendar for review regarding status of the litigation. A Petition for Approval of compromise of Claim of the minor Plaintiff has been filed and is set for hearing on July 27, 2026. This matter is continued to **Monday, July 27, 2026, at 9:00 a.m. in Department 64** for status of the litigation. **No appearance is necessary on today's calendar.**

CONSOLIDATED ELECTRICAL DISTRIBUTORS, INC. VS. GSJ CONSTRUCTION COMPANY, INC., ET AL.

CASE NUMBER: 24CVG-00924

This matter is on calendar for review regarding status of default judgment. All Defendants have been defaulted or have been dismissed. No Request for Entry of Default Judgment has been submitted. **An appearance is necessary on today's calendar to provide the status of the requests for entry of default judgment.**

DISCOVER BANK VS. ALEXANDER

CASE NUMBER: 24CVG-01731

This matter is on calendar for review regarding status of judgment/dismissal. A Conditional Notice